

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 4, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23CV414045	Yesenia Zavaleta vs Volkswagen Group of America, Inc. et al	Motion for Attorney's Fees and Cost OFF CALENDAR. On July 30, 2026, the parties stipulated to continue this motion for attorney's fees to August 11, 2026 at 9:00 a.m. in Department 1 to join the motion to strike cost.
<u>LINE 2</u>	23CV416906	Emilia Arroyo vs Juan Manuel Salas, Jr.	Demurrer Scroll down to Line 2 for Tentative Ruling.
<u>LINES 3-4</u>	24CV431877	Robert Hayter, II vs Bella Nguyen et al	Motion to Compel Response to Form Interrogatories (Line # 3) and Motion to Compel Responses to Request for Production of Documents (Line #4); Sanctions Defendant Bella Nguyen filed two motions: (1) motion to compel responses to form interrogatories, set one and sanctions; and (2) motion to compel request for production of documents, set one and sanctions on November 21, 2025. The motion was accompanied by a proof of service indicating mail service to Plaintiff Robert Hayter, II. Both motions were set for hearing on July 30, 2026. The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Per ex parte papers filed by the plaintiff seeking a continuance, the Honorable Mark Flannagan CONTINUED both motions to September 8, 2026 at 9:00 a.m. in Department 1.

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LAW AND MOTION TENTATIVE RULINGS

LINE 5	24CV446068	Marilyn Evans et al vs Stanford Health Care et al	Demurrer OFF CALENDAR - MOTION WITHDRAWN on July 28, 2026 by moving party Stanford Health Care. On July 24, 2026, plaintiff Gary Evans filed a request to dismiss the loss of consortium claim. Upon filing and entry of the dismissal, the demurrer to the second cause of action of the First Amended Complaint for loss of consortium is rendered moot.
LINE 6	25CV483365	Jennifer Voges et al vs Huiqiong Deng et al	Demurrer Scroll down to Line 6 for Tentative Ruling.
LINES 7-8	26CV493764	James Souza III vs Victoria Garcia	Motion to Quash (Line # 7) and Demurrer (Line #8) Scroll down to Lines 7-8 for Tentative Ruling.

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9:01 A.M.			
LINE 1	23CV424189	Facchino/LaBarbera Tennant Station, LLC vs Adrian Little et al	Order of Examination Parties to appear.

- 00000 -

9:00 A.M.

Calendar Line # 2

Case Name Emilia Arroyo vs Juan Manuel Salas, Jr.

Case No. 23CV416906

Demurrer

Before the court is cross-defendant's demurrer to cross-complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

A. FIRST AMENDED COMPLAINT ¹

Defendant Juan Salas, Jr. ("Salas") is plaintiff Emilia Arroyo's ("Arroyo") son. (First Amended Complaint ("FAC"), ¶¶2 – 3).

Defendant Salas was born in February 1980. (FAC, ¶6). In his 20s, defendant Salas lived in an apartment in San Jose, California. (*Id.*). Plaintiff Arroyo lived in Palm Springs at the time and supported defendant Salas by paying the rent for his apartment. (*Id.*).

In summer 2009, plaintiff Arroyo decided it would be better to buy a house and pay a mortgage than pay defendant Salas's rent. (FAC, ¶7). In October 2009, plaintiff Arroyo purchased a home located at 7310 Pittsfield Way in San Jose, California for \$422,000.00 ("Subject Property"). (*Id.*). Plaintiff Arroyo paid \$12,600.00 for the downpayment and financed the balance with a mortgage loan in both her name and defendant Salas's name. (*Id.*). Title to the Subject Property was held by plaintiff Arroyo and defendant Salas, but the parties understood and intended for plaintiff Arroyo to make all payments towards the loan and pay all other expenses associated with the Subject Property including property taxes and utilities. (FAC, ¶¶7 – 8).

While living at the Subject Property, defendant Salas had a roommate who paid \$500.00 per month, but plaintiff Arroyo received no portion of those payments. (FAC, ¶9).

In 2014, plaintiff Arroyo had surgery that adversely affected her ability to financially support defendant Salas. (FAC, ¶10). Consequently, plaintiff Arroyo sold her residence in Palm Springs and moved into the Subject Property. (*Id.*). Defendant Arroyo's roommate moved out. (*Id.*). Due to the financial hardship, plaintiff Arroyo modified the original mortgage loan and also took a second mortgage loan. (*Id.*). Both loans remained in plaintiff Arroyo and defendant Salas's names and plaintiff Arroyo continued paying the mortgage and almost all expenses associated with the Subject Property. (*Id.*).

In 2016, plaintiff Arroyo purchased a new vehicle by making a downpayment and financing the balance. (FAC, ¶11). Since then, plaintiff Arroyo has paid the loan and all expenses associated with the vehicle. (*Id.*). Defendant Salas has not paid anything towards the vehicle. (*Id.*).

In November 2017, plaintiff Arroyo gave \$120,000.00 to defendant Salas asking him to keep it in a Certificate of Deposit ("CD") account which he did. (FAC, ¶12). In 2019, defendant Salas withdrew \$8,000.00 from the CD account without plaintiff Arroyo's knowledge and consent. (*Id.*).

In 2019, worried something could happen to her, plaintiff Arroyo executed, but did not record, a quitclaim deed to the Subject Property to defendant Salas and added defendant Salas's name to the vehicle's title. (FAC, ¶13).

¹ On July 20, 2026, the court issued an order granting plaintiff Emilia Arroyo leave to file a second amended complaint. As of July 22, 2026, plaintiff Arroyo has not yet done so. Plaintiff Arroyo's first amended complaint remains the operative pleading.

Subsequently, plaintiff Arroyo and defendant Salas's relationship deteriorated. (FAC, ¶14). In October 2022, plaintiff Arroyo asked defendant Salas to move out of the Subject Property and asked for defendant Salas's cooperation in removing his name from title to the Subject Property and vehicle, and transferring money from the CD account with interest to plaintiff Arroyo. (*Id.*). Defendant Arroyo moved out of the Subject Property and assured plaintiff Arroyo he would cooperate in transferring title and moneys, but he never did. (*Id.*).

On June 6, 2023, plaintiff Arroyo commenced this action against defendant Salas by filing a complaint.

On September 28, 2023, defendant Salas filed an answer to plaintiff Arroyo's complaint.

On July 1, 2024, after obtaining an order allowing her to do so, plaintiff Arroyo filed the now operative FAC which asserts causes of action against defendant Salas for: (1) declaration of resulting trust; and (2) breach of fiduciary duty.

On July 31, 2024, defendant Salas filed an answer to plaintiff Arroyo's FAC.

B. CROSS COMPLAINT

On August 18, 2025, after obtaining leave to do so, defendant Salas filed a cross-complaint against Arroyo. The cross-complaint alleges that in 2009, Arroyo and Salas jointly purchased the Subject Property, taking title as tenants-in-common and assuming responsibility for the first and second mortgage loans. (Cross-Complaint, ¶6). At the time, Arroyo contributed a greater portion of the down payment as Salas was still pursuing his education and earning limited income. (*Id.*).

Arroyo provided financial support by transferring funds into Salas's personal checking account from which he paid the mortgage and other Subject Property related expenses. (Cross-Complaint, ¶7). These transfers were intended as gifts and not as contributions made in exchange for an ownership interest. (*Id.*). As his income increased, Salas assumed a larger share of the mortgage and property expenses himself. (*Id.*).

Over time, Arroyo expressed her intent that the Subject Property should belong solely to Salas. (Cross-Complaint, ¶8). Arroyo expressed her desire that Salas own the Subject Property outright so there would be no need to transfer her interest upon her death. (*Id.*). This expression of intent is consistent with Arroyo's pattern of assisting her other children in acquiring property during their lifetimes. (*Id.*).

To give effect to her intent, Arroyo executed a quitclaim deed on October 11, 2019 conveying all of her interest in the Subject Property to Salas as a gift. (Cross-Complaint, ¶9 and Exh. A). The San Mateo County Recorder's Office rejected the deed for recording due to a missing or incomplete Preliminary Change of Ownership Report ("PCOR"). (Cross-Complaint, ¶10). To correct the issue, Arroyo executed a second quitclaim deed on October 16, 2019, again conveying her interest in the Subject Property to Salas and identifying the conveyance as a gift under Revenue and Taxation Code section 11930. (*Id.*).

Although both deeds were executed and delivered to Salas, neither was successfully recorded. (Cross-Complaint, ¶11). Nevertheless, Arroyo's intent to gift the Subject Property was clear and unequivocal and delivery of both deeds was completed. (*Id.*).

After a personal falling out in 2022, Arroyo excluded Salas from the Subject Property and has remained in exclusive possession ever since despite previously transferring her interest and relinquishing any claim of ownership. (Cross-Complaint, ¶12).

Salas's cross-complaint against Arroyo asserts causes of action for: (1) quiet title; and (2) declaratory relief.

On November 19, 2025, cross-defendant Arroyo filed the motion now before the court, a demurrer to cross-complainant Salas's cross-complaint.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A court may sustain a demurrer on the ground of failure to state sufficient facts if "the complaint shows on its face the statute [of limitations] bars the action." (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315 (*E-Fab*)). A demurrer is not sustainable on statute of limitations grounds if there is only a possibility that the cause of action is time-barred; the defense must be clearly and affirmatively apparent from the allegations of the pleading [and matters of which the court may properly take judicial notice]. (*Id.*, at pp. 1315-1316).² When evaluating whether a claim is time-barred, the court must determine: (1) which statute of limitations applies, and (2) when the claim accrued. (*E-Fab, supra*, 153 Cal.App.4th at p. 1316).

Cross-defendant Arroyo demurs to both causes of action (quiet title and declaratory relief) asserted in cross-complainant Salas's cross-complaint on the ground that they are barred by the applicable statute of limitations.

The Legislature has not established a specific statute of limitations for actions to quiet title. (*Muktarian v. Barmby* (1965) 63 Cal.2d 558, 560 [47 Cal. Rptr. 483, 407 P.2d 659] (*Muktarian*)). Therefore, courts refer to the underlying theory of relief to determine the applicable period of limitations. (*Ibid.*; see 53 Cal.Jur.3d (2012) Quieting Title, § 34, pp. 412–413). An inquiry into the underlying theory requires the court to identify the nature (i.e., the "gravamen") of the cause of action. (*Hensler v. City of Gendale* (1994) 8 Cal.4th 1, 22 [32 Cal.Rptr.2d 244, 876 P.2d 1043]).

Generally, the most likely time limits for a quiet title action are the five-year limitations period for adverse possession, the four-year limitations period for the cancellation of an instrument, or the three-year limitations period for claims based on fraud and mistake.

(*Salazar v. Thomas* (2015) 236 Cal.App.4th 467, 476-477 (*Salazar*); footnotes omitted).

Arroyo contends a three year statute of limitations applies here because Salas alleges the reason he cannot assert sole ownership to the Subject Property is due to a "mistake" (technical defects in the recording process). Arroyo contends this "mistake" is the gravamen of the complaint. The court disagrees.

² See also *Heshejin v. Rostami* (2020) 54 Cal.App.5th 984, 992-993: "[A] demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense." (*Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191 [213 Cal. Rptr. 3d 850]; accord, *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191 [151 Cal. Rptr. 3d 827, 292 P.3d 871] [application on demurrer of affirmative defense of statute of limitations based on facts alleged in a complaint is a legal question subject to de novo review]; *Favila v. Katten Muchin Rosenman LLP* (2010) 188 Cal.App.4th 189, 224 [115 Cal. Rptr. 3d 274] ["It must appear clearly and affirmatively that, upon the face of the complaint [and matters of which the court may properly take judicial notice], the right of action is necessarily barred."]).

“The elements of a quiet title action include all of the following: [1] A description of the property that is the subject of the action; [2] The title of the plaintiff as to which a determination is sought and the basis of the title; [3] ***The adverse claims to the title of the plaintiff against which a determination is sought***; [4] The date as of which the determination is sought; [5] A prayer for the determination of the title of the plaintiff against the adverse claims.” (5 Witkin, California Procedure (4th ed. 1997) Pleading, §622, pp. 87 citing Code Civ. Proc. §761.020; emphasis added). The Law Revision Commission Comment to Code of Civil Procedure section 761.020 states, with regard to the third element that, “Subdivision (c) requires the ***naming of specific adverse claims as to which the plaintiff seeks to quiet title***.” (emphasis added).

In the court’s opinion, the gravamen of a claim for quiet title is what “adverse claim” to title did the defendant assert. Here, the cross-complaint alleges, in relevant part, “[Arroyo] claims an adverse interest in the Subject Property by asserting that she is the sole owner.” (Cross-Complaint, ¶19). However, this did not occur until, “Following a personal falling out in 2022, [Arroyo] excluded [Salas] from the property and has remained in possession ever since.” (Cross-Complaint, ¶12). Thus, in the court’s view, it is this allegedly wrongful exclusion of Salas from possession or illegal exercise of dominion over the Property which serves as the gravamen of Salas’s quiet title claim, not the unsuccessful recording of the quitclaim deeds.

Even if this court assumed that a three year statute of limitation applies to the claim for quiet title, Arroyo does not persuasively demonstrate when the cause of action accrued such that the court can conclude the cause of action is barred. As explained in the *Salazar* decision that Arroyo herself relies upon, “No statute of limitations runs against a plaintiff [or here, cross-complainant] seeking to quiet title while he is in possession of the property.” (*Salazar*, *supra*, 236 Cal.App.4th at p. 477).

It is reasonable to infer from the allegation, above, that Arroyo excluded Salas from the Subject Property after a falling out in 2022, Salas was in possession of the Subject Property prior to being excluded. Since the cross-complaint alleges only that Arroyo was excluded some time in 2022 without specifying any particular date, it does not appear clearly and affirmatively from the face of the cross-complaint that this cause of action is barred, even if the court were to assume the governing statute of limitations is three years.

Arroyo relies on this same argument with regard to the second cause of action (declaratory relief) believing the second cause of action to be “clearly predicated on the same theory and seek the same relief.”³

IV. CONCLUSION

Based on the foregoing, cross-defendant Arroyo’s demurrer to cross-complainant Salas’s cross-complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for quiet title and declaratory relief is OVERRULED. The Court will prepare the formal Order.

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³ See page 5, lines 5 – 6, of the memorandum of points and authorities in support of cross-defendant Arroyo’s demurrer to cross-complainant Salas’s cross-complaint.

Calendar Line # 6
Case Name Jennifer Voges et al vs Huiqiong Deng et al
Case No. 25CV483365
Demurrer Before the court is defendants Stanford Health Care and Huiqiong Deng, M.D.’s demurrer to the complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> Plaintiff Jennifer Voges (“Voges”) was a long-term prescribed benzodiazepine user and was in active benzodiazepine withdrawal when she sought and received care from defendant El Camino Health dba El Camino Hospital (“ECH”). (Complaint, ¶8). Despite plaintiff Voges’s benzodiazepine dependence and active withdrawal, defendant ECH staff administered opiates, including morphine and Dilaudid (hydromorphone), creating a high risk combination known to increase respiratory and neurologic dangers. (Complaint, ¶9). As a result of the contradicted opioids, plaintiff Voges suffered a drug-induced crisis requiring Narcan to reverse opiate toxicity and she was then given anti-psychotic medication that is contraindicated in benzodiazepine withdrawal, further destabilizing her condition. (Complaint, ¶10). Plaintiff Voges required Narcan after opiate administration and was given antipsychotic medication that worsened her condition. (<i>Id.</i>). Defendant ECH failed to obtain informed consent for, or disclose, the Narcan administration during or after the event. (Complaint, ¶11). Defendant ECH never informed plaintiff Voges or her family that Narcan had been administered, did not obtain consent, and did not disclose the intervention afterward. (<i>Id.</i>). Plaintiff Voges and her family later discovered this only upon review of medical records. (<i>Id.</i>). Defendant ECH staff refused to provide plaintiff Voges’s baseline, prescribed, benzodiazepine and refused her progesterone, despite documented prescription and visible withdrawal symptoms, accelerating her deterioration. (Complaint, ¶12). Plaintiff Voges received care at defendant ECH between December 31, 2024 and January 8, 2025. (Complaint, ¶2). Rather than stabilizing plaintiff Voges, defendant ECH transferred her to defendant Aspen Skilled Healthcare, Inc. dba Woodlands Healthcare Center (“Woodlands”), a skilled nursing facility, for physical therapy even though she was medically unstable and required medical, not rehabilitative, care beyond the scope of a skilled nursing facility. (Complaint, ¶12). Defendant Woodlands lacked qualified personnel to properly manage benzodiazepine withdrawal and opiate complications. (<i>Id.</i>). Plaintiff Voges’s husband ultimately removed plaintiff Voges and transported her to defendant Stanford Health Care dba Stanford Hospital (“Stanford”) where she was immediately admitted. (Complaint, ¶15). At Stanford, under the care of defendant Huiqiong Deng, M.D. (“Dr. Deng”), plaintiff Voges was subjected to the administration of Ketamine against her explicit refusals; repeated invasive testing represented as “mandatory” despite objections; and undisclosed administration of medications, including ciprofloxacin, contraindicated in benzodiazepine withdrawal. (Complaint, ¶16). Stanford personnel, including Dr. Deng, engaged in coercive and intimidating conduct, including threats of psychiatric transfer for refusing medications, forced psychiatric evaluations despite objections, and threats of a feeding tube when plaintiff could not eat due to benzodiazepine related gastrointestinal symptoms. (Complaint, ¶17). Defendants Stanford and/or Dr. Deng failed to disclose, evaluate, or treat a documented enlarged thyroid observed on imaging, did not provide inpatient endocrine evaluation, and later canceled scheduled endocrinology follow-up. (<i>Id.</i>). A subsequent outside endocrinology evaluation in December 2025 noted a significant enlarged, tender, misshapen thyroid with concern for malignancy. (<i>Id.</i>)

On December 30, 2025, plaintiffs Voges and Darren Voges filed a complaint against defendants Stanford and Dr. Deng, among others, asserting causes of action for:

- (1) Professional Negligence
- (2) Medical Battery
- (3) Negligent Hiring, Supervision, and Retention
- (4) Negligence Per Se
- (5) Loss of Consortium

On June 30, 2026, defendants Stanford and Dr. Deng filed the motion now before the court, a demurrer to the second and fourth causes of action of plaintiffs' complaint.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A. MEDICAL BATTERY

Our high court has made it clear that battery and lack of informed consent are separate causes of action. A claim based on lack of informed consent—which sounds in negligence—arises when the doctor performs a procedure without first adequately disclosing the risks and alternatives. In contrast, a battery is an intentional tort that occurs when a doctor performs a procedure without obtaining any consent. (*Saxena v. Goffney* (2008) 159 Cal.App.4th 316, 324).

Plaintiff Voges's second cause of action is labeled as one for medical battery but then alleges, in relevant part, “Defendants, including Deng, performed medical interventions without obtaining [plaintiff Voges's] informed consent or by failing to disclose material information, risks, alternatives, or by misrepresenting necessity, including . . . Ketamine at Stanford despite express refusal. . . . Stanford administered Ketamine despite explicit refusals and concealed medication identities including ciprofloxacin.” (Complaint, ¶26).

In demurring, defendants Stanford and Dr. Deng highlight plaintiff Voges's allegation that she presented with “cognitive impairment” and active benzodiazepine withdrawal (see Complaint, ¶¶13 and 15) but never alleges she regained cognitive abilities. Defendants contend the allegations of the complaint establish plaintiff was “disputing the professional medical judgments of the healthcare providers,” but plaintiff Voges does not allege defendants Stanford or Dr. Deng intentionally violated the consent which was provided.

Although the court may draw reasonable inferences from the explicit allegations of a complaint, the court must also accept, as true, the allegations of the pleading. Defendants Stanford and Dr. Deng essentially ask the court to infer from the allegation that plaintiff Voges presented with “cognitive impairment” (at Woodlands, prior to her admission to Stanford) that she never regained any cognitive abilities. However, the court will not make such an inference here as plaintiff Voges alleges that while at Stanford, she “explicitly refus[ed]” the administration of Ketamine. Such an allegation is an express allegation that defendants Stanford and Dr. Deng intentionally violated the consent plaintiff Voges provided.

Moreover, as plaintiff Voges points out in her opposition, the complaint further alleges she was subjected to “undisclosed administration of medications, including ciprofloxacin.” (Complaint, ¶16). The reasonable inference to be drawn from the allegation that such administration was “undisclosed,” is that the drugs were administered without plaintiff Voges’s knowledge and, consequently, without plaintiff Voges’s consent. The allegation of an “undisclosed administration of medications” is sufficient to support plaintiff Voges’s second cause of action for medical battery.

Accordingly, defendants Stanford and Dr. Deng’s demurrer to the second cause of action of plaintiff Voges’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for medical battery is OVERRULED.

B. NEGLIGENCE PER SE

Plaintiff Voges’s fourth cause of action, entitled “Negligence Per Se,” alleges, in relevant part, that defendants “violated patient-protection duties requiring informed consent for non-emergent interventions and post-emergency disclosure/ documentation of medications administered ... and disclosure of material findings.” (Complaint, ¶34).

“Section 669 of the Evidence Code sets forth the doctrine commonly called negligence per se. It provides that negligence of a person is presumed if he violated a statute or regulation of a public entity, if the injury resulted from an occurrence that the regulation was designed to prevent, and if the person injured was within the class for whose protection the regulation was adopted. This presumption may be rebutted by proof that the violator did what might reasonably be expected of a person of ordinary prudence, acting under similar circumstances, who desired to comply with the law.” (*Klein v. BIA Hotel Corp.* (1996) 41 Cal.App.4th 1133, 1140). Negligence per se is not a cause of action. “The negligence per se doctrine actually relates to the burden of proof.” (*Cade v. Mid-City Hospital Corp.* (1975) 45 Cal.App.3d 589, 596). If the elements are met, the doctrine merely creates an evidentiary presumption in support of a claim for negligence.

“ ‘[T]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.’ [Citation.] [¶] The doctrine of negligence per se does not provide a private right of action for violation of a statute. [Citation.]” (*Johnson v. Honeywell Intern. Inc.* (2009) 179 Cal.App.4th 549, 555–56).

Of course, plaintiff Voges will be allowed to pursue/ apply the doctrine of negligence per se at time of trial, but since negligence per se is not a cause of action and plaintiff Voges has already stated a cause of action for professional negligence, defendants Stanford and Dr. Deng’s demurrer to the fourth cause of action of plaintiff Voges’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for negligence per se is SUSTAINED WITHOUT LEAVE TO AMEND.

IV. CONCLUSION

Based on the foregoing, the Court Orders as follows: (1) Defendants Stanford and Dr. Deng’s demurrer to the second cause of action of plaintiff Voges’s complaint for medical battery is OVERRULED; and (2) Defendants Stanford and Dr. Deng’s demurrer to the fourth cause of action of plaintiff Voges’s complaint for negligence per se is SUSTAINED WITHOUT LEAVE TO AMEND. The Court will prepare the formal Order.

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Calendar Lines # 7-8
Case Name James Souza III vs Victoria Garcia
Case No. 26CV493764
Motion to Quash (Line # 7) and Demurrer (Line #8) Before the court is the defendant Motion to Quash Service and Summons (Line #7) and Demurrer (Line #8). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>MOTION TO QUASH (LINE # 7)</u> I. BACKGROUND On June 30, 2026, Defendant Victoria Garcia (“Garcia”) filed a motion to quash service of summons. The motion was accompanied by a proof of service indicating mail service to Plaintiff James Souza III (“Souza”) on July 6, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the Defendant’s moving papers, including, the notice of motion (totaling 2 pages); memorandum of points and authorities (totaling 5 pages); Declaration of Robert T. Meastas and attached Exhibits A-B (totaling 35 pages); proof of services; and the pleadings. II. LEGAL STANDARD Pursuant to Code of Civil Procedure section 418.10, a defendant may file a motion to quash service of a summons “on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1)). “When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.” (<i>Vons Companies. v. Seabest Foods</i> (1996) 14 Cal.4th 434, 449; accord <i>Snowney v. Harrah’s Entertainment</i> (2005) 35 Cal.4th 1054, 1062; <i>Swenberg v. Dmarcian, Inc.</i> (2021) 68 Cal.App.5th 280, 291; <i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163; <i>Elkman v. National States Ins. Co.</i> (2009) 173 Cal.App.4th 1305, 1313; <i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413). “If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating that the exercise of jurisdiction would be unreasonable.” (<i>Pavlovich v. Super. Ct.</i> (2002) 29 Cal.4th 262, 273; accord <i>Snowney, supra</i>, 35 Cal. 4th at p. 1062; <i>Vons Companies, supra</i>, 14 Cal.4th at p. 449; <i>Swenberg, supra</i>, 68 Cal.App.5th at p. 291). Code of Civil Procedure section 410.10, the court “may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.” A court may exercise jurisdiction over a defendant if the plaintiff presents sufficient jurisdictional evidence to establish that “the defendant has such minimum contacts with California that the assertion of jurisdiction does not violate traditional notions of fair play and substantial justice.” (<i>Bruce v. Shabaab</i> (2020) 54 Cal.App.5th 578, 589). There are two different kinds of personal jurisdiction: general jurisdiction and specific jurisdiction. General jurisdiction applies when a defendant is domiciled in the forum or is otherwise “essentially at home.” (<i>Ford Motor Co. v. Montana Eighth Judicial Dist. Ct.</i> (2021) 592 U.S. 351, 358; see also <i>Daimler AG v. Bauman</i> (2014) 571 U.S. 117, 137). Specific jurisdiction, in contrast, examines the relationship between the defendant’s contacts with the forum state and the causes of action asserted in the litigation; it generally requires that there be some evidence of “purposeful availment” or other connection between the defendant and the forum and that the litigation arises out of the defendant’s forum-related contacts. (<i>Ford Motor Co., supra</i>, 592 U.S. at pp. 359-360). Jurisdictional facts must

be established through admissible evidence, including declarations, affidavits, or properly authenticated documents. (*Swenberg, supra*, 68 Cal.App.5th at p. 291; *In re Automobile Antitrust Cases I and II* (2005) 135 Cal.App.4th 100, 110). The plaintiff cannot, however, rely simply on allegations in an unverified complaint or inadmissible hearsay. (*Swenberg, supra*, 68 Cal.App.5th at p. 291). In an appropriate case, discovery on the jurisdictional facts may be permitted. (*HealthMarkets, Inc. v. Super. Ct.* (2009) 171 Cal.App.4th 1160, 1173; see also 1 Weil & Brown, California Practice Guide: Civil Procedure Before Trial (2024), ¶ 3:386).

III. ANALYSIS

Here, Defendant Garcia asserts that the proof of service and summons was not perfected and cites to a number of deficiencies: (1) box 2 on the proof of service states that only the summons was served, and no complaint or other required documents were also attached (e.g., civil cover sheet, ADR packet. (Declaration of Meastas ¶ 7; Exhibit A); (2) box 3 lists a “Nellie E. Correa” as the individual who served the summons, but fails to state the relationship if any to the defendant. (*Id.*, at ¶ 8; Exhibit A); (3) box 4 lists an address that does not match the defendant’s address. (*Id.*, at ¶ 9; Exhibit A); (4) the summons was left on the defendant’s residence without a complaint or other required documents. (*Id.*, at ¶ 10; Exhibit A); (5) the proof of service does not indicate the type of service under boxes 5(a)-(b). (*Id.*, at ¶ 11; Exhibit A); and (6) the defendant avers there was no personal or substituted service as required under the law. (*Id.*, at ¶ 12; Exhibit A).

Defendant Garcia asserts obtaining a copy of the Complaint by downloading it from the court’s website. (*Id.*, at ¶ 13). The Complaint is handwritten and alleges of causes of actions relating to inheritance matters. (Complaint; and Defendant’s motion, p. 2). Defense counsel avers that service of process has not been effectuated. (*Id.*, at ¶ 14). Defense counsel Timonthy D. Henry attempted to reach out to the plaintiff on July 18, 2026⁴ via a telephone call and left a message requesting a return call. (*Id.*, at ¶ 15). As of the date of the filing, the plaintiff did not return a call to defense counsel.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court notes that the defendant has submitted a Declaration of Meastas stating six deficiencies as cited above in the proof of service and denies that the defendant was served by personal or substituted service. In regards to substitute service, the defendant submits that the summons was simply left at the doorstep. As to substituted service, Code of Civil Procedure section 415.20 provides, as relevant here:

- (a) In lieu of personal delivery of a copy of the summons and complaint to the person to be served [. . .], a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, [. . .], with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

⁴ The Court notes that the date July 18, 2026 provided in the Declaration of Meastas appears to be in error as it *post-dates* the date the motion was filed on June 30, 2026 and the subsequent proof of service on July 6, 2026.

- (b) If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served [. . .], a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing [. . .], in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

(Code Civ. Proc. § 415.20 (a)-(b) [emphasis added].) Ordinarily, "two or three attempts" at personal service will satisfy the requirement of reasonable diligence. (*Bein v. Brechtel Jochim Grp. Inc.* (1992) 6 Cal.App.4th 1387, 1391-92).

There has been no showing that alternative service was granted in the matter and a showing of diligence. "If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc. § 415.20(b)).

The plaintiff did not oppose the motion. The Court finds that proper service has not been effectuated.

IV. CONCLUSION

Based on the foregoing, the motion being unopposed, the Court GRANTS the defendant's motion to quash service. The Court will prepare the formal Order.

DEMURRER (LINE # 8)

I. BACKGROUND

On July 13, 2026, Defendant Victoria Garcia filed the demurrer to Plaintiff Jammes Souza III's complaint. The demurrer was accompanied by a proof of service to Plaintiff James Souza III ("Souza") on July 6, 2026.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the Defendant's moving papers, including, the notice of demurrer (totaling 3 pages); memorandum of points and authorities (totaling 6 pages); Declaration of Robert T. Meastas (totaling 2pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

Given the Court’s ruling in Line # 7, granting the defendant’s motion to quash service, the demurrer is rendered MOOT.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, the defendant’s demurrer is DENIED without prejudice as MOOT in light of the Court granting the motion to quash service and summons filed by the defendant. The Court will prepare the formal Order.